

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 12/11/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02747
CASE NAME: JOHN KEYS VS. FRESCHI AIR SYSTEMS, LLC
*HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SETTLEMENT (CONTINUED FROM: 10.30.2025)
FILED BY:
TENTATIVE RULING:

Plaintiffs John Keys and Shantell Jordan move for final approval of their class action and PAGA settlement with defendant Freschi Air Systems LLC. The matter was first heard on October 30, 2025,

and was continued for supplementation of the record concerning notice to the class.

A. Background and Settlement Terms

The original complaint was filed by Mr. Keys on December 27, 2022, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including misclassification of non-exempt workers, failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. The currently operative complaint is a Second Amended Complaint filed on September 23, 2024, adding Ms. Jordan as a plaintiff.

The settlement would create a gross settlement fund of \$480,000. The class representative payment to each plaintiff would be \$7,500. Attorney's fees would be \$160,000 (one-third of the settlement). Litigation costs would not exceed \$35,000. The settlement administrator's costs would not exceed \$6,990. PAGA penalties would be \$50,000, resulting in a payment of \$37,500 to the LWDA and \$12,500 to plaintiffs. The net amount paid directly to the class members would be about \$225,510. The fund is non-reversionary. Based on the estimated class size of 213 (86 PAGA employees), the average net payment for each class member is approximately \$1,054.50.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and will be transmitted to the State Controller's Office Unclaimed Property fund.

Notice was mailed to the class members, as set forth in the supplemental submission. 202 notices were mailed, and 19 were returned as undeliverable. Follow-up resulted in 15 new addresses, which were mailed and only 4 were returned. No objections were received. No requests for exclusion were received.

The settlement contains release language covering "all claims against Released Parties under state federal, or local law, that were asserted or could have been asserted based on the facts, claims or theories raised in the Third Amended Complaint (to be filed) or any prior complaints; facts, claims or theories expressly raised in Plaintiff's amended notice to the LWDA (to be filed)[.]" Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

The release of claims in two at one point unfiled documents—the Third Amended Complaint and the amended LWDA notice--potentially raised two issues. The first is solved by the fact that the Third Amended Complaint was filed on April 23, 2025, and therefore is no longer "to be filed." The

amended LWDA letter has been provided to the Court. (March 10, 2025 LWDA letter, attached to Moon Dec.) Second, counsel must establish that their investigation and pursuit of the as yet unfiled claims was as diligent and thorough as that of the initially noticed and pled claims.

Informal and formal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include “stacking” of violations, the law may only allow application of the “initial violation” penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where “based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.”])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees (\$160,000), relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, the Court deferred consideration of the fee award until final approval. Counsel have calculated a lodestar of \$177,955, based on 243.3 hours of attorney time at hourly rates ranging from \$550 to \$950, with the plurality of the work billed at \$750. The implied multiplier is 0.9. There is no need for an adjustment here. The fees are reasonable and are approved.

Litigation costs of up to \$35,000 are reasonable and are approved.

Settlement administration costs of \$6,990 are reasonable and are approved.

Similarly, litigation costs and the requested representative payment of \$7,500 for each plaintiff are now reviewed. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Mr. Keys attests that he spent about 25 hours working on the case and that being the class representative could affect his future employment prospects. Ms. Jordan attests that she spent about 20 hours working on the case and that being the class representative could affect her future employment prospects. All things considered, the request for \$7,500 each is approved.

D. Conclusion

In its tentative decision for the June 5, 2025, calendar, the Court found that, other than that issue of the recently-added claims, it would find that there is sufficient evidence that the settlement is fair, reasonable, and adequate to warrant preliminary approval. The Court, however, required that counsel submit a declaration establishing that those claims were investigated and pursued as thoroughly as the other claims. Counsel provided a declaration in conjunction with the motion for preliminary approval that provides sufficient discussion of the issue.

The Court finds that the settlement is fair, reasonable, and adequate, and grants the motion.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

2. 9:00 AM CASE NUMBER: C23-00841
CASE NAME: ANGELITO ALVIZ VS. VIRGILIO LEGARTE
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL AS TO JAYJAY ALFONSO**
FILED BY: ALFONSO, JAY JAY
TENTATIVE RULING: